

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: David Noriega	Team: Team # 3	CCRB Case #: 201001417	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 01/26/2010 6:58 PM	Location of Incident: § 87(2)(b) § 87(2)(b)	Precinct: 75	18 Mo. SOL 7/26/2011	EO SOL 7/26/2011	
Date/Time CV Reported Tue, 01/26/2010 6:58 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/01/2010 11:48 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Jennifer Lavelle	20760	933921	NARCBBN
2. SGT Dominick Maranzano	03571	917921	NARCBBN
3. DT3 Dennis Friendly	02755	930185	NARCBBN
4. DT3 Matthew Francis	06100	925310	NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Phillip Smith	07158	907062	NARCBBN
2. LT Chris Hueter	00000	922524	075 PCT
3. POM Ryan White	01074	943948	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Dennis Friendly	Abuse: Det. Dennis Friendly entered and searched § 87(2)(b)	§ 87(2)(b)
B.DT3 Dennis Friendly	Force: Det. Dennis Friendly used physical force against § 87(2)(b)	§ 87(2)(b)
C.DT3 Dennis Friendly	Abuse: Det. Dennis Friendly refused to provide his name and shield number to § 87(2)(b)	§ 87(2)(b)
D.DT3 Matthew Francis	Abuse: Det. Matthew Francis refused to provide his name and shield number to § 87(2)(b)	§ 87(2)(b)
E.POF Jennifer Lavelle	Abuse: PO Jennifer Lavelle refused to provide her name and shield number to § 87(2)(b)	§ 87(2)(b)
F.DT3 Dennis Friendly	Abuse: Det. Dennis Friendly threatened to arrest § 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint with IAB on January 26, 2010. IAB referred the complaint to the CCRB under log number 10-04600 on February 1, 2010.

On January 26, 2010, Detective Dennis Friendly, Detective Matthew Francis and Officer Jennifer Lavelle of Brooklyn North Narcotics entered the home of § 87(2)(b) located at § 87(2)(b) § 87(2)(b) in Brooklyn. The following allegations emerged from the incident:

- **Allegation A – Abuse of Authority:** Detective Dennis Friendly entered § 87(2)(b) § 87(2)(b) in Brooklyn. § 87(2)(b), § 87(2)(g)
- **Allegation B – Force:** Detective Dennis Friendly used physical force against § 87(2)(b)
- **Allegations C, D & E – Abuse of Authority:** Detective Dennis Friendly, Detective Matthew Francis, and PO Jennifer Lavelle refused to provide § 87(2)(b) with their names and shield numbers.
- **Allegation F – Abuse of Authority:** Detective Dennis Friendly threatened to arrest § 87(2)(b) § 87(2)(b), § 87(2)(g)
- § 87(4-b), § 87(2)(g)

This case was initially assigned to Investigator Eric Black. Due to Investigator Black's reassignment, the case was reassigned to the undersigned investigator on April 16, 2010.

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b)

§ 87(2)(b)

911 Call and Statements to IAB

On January 26, 2010, at approximately 6:58 p.m., § 87(2)(b) called 911. § 87(2)(b) provided a brief statement to the 911 operator and requested that a police supervisor respond to his apartment [Encl. C 1]. The call was subsequently disconnected. § 87(2)(b) called 911 again immediately thereafter, and provided an additional statement to a different operator, once again requesting that a supervisor come to his apartment. During these calls, § 87(2)(b) is audibly upset about the incident. He states that officers forced their way into his apartment, and that one

of them punched him twice in the chest. At 8:17 p.m., after uniformed officers responded to § 87(2)(b)'s apartment in regards to his 911 calls, § 87(2)(b) called the IAB Command Center directly and provided a phone statement [Encl. C 2]. § 87(2)(b) appears calmer during this conversation. These statements to 911 and IAB are consistent with each other and with § 87(2)(b)'s statement to the CCRB, which is summarized below.

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on February 18, 2010. He viewed photo arrays at the CCRB on March 16, 2010. [Encl. C 7-29.]

§ 87(2)(b) had moved into his apartment at § 87(2)(b) in late December of 2009. On January 26, 2010, at approximately 7:00 p.m. (the investigation determined the time of the incident to be closer to 6:30 p.m.), § 87(2)(b) heard a loud knock at his apartment door. An individual at the door – identified by the investigation as Det. Friendly – identified himself with a name resembling “Henry” or “Harry” and stated that he wanted his belongings. § 87(2)(b) began to open the door, and Det. Friendly immediately pushed his way partly into the apartment, applying pressure against the door to fully open it. § 87(2)(b) stopped the door with his foot, but let it open shortly thereafter, as he was not wearing shoes and was afraid of injuring his foot. Det. Friendly and two other officers – identified by the investigation as PO Lavelle and Det. Francis – entered the apartment without displaying shields or identifying themselves as officers. § 87(2)(b) initially thought he was being robbed. In his phone statements to 911 and IAB, § 87(2)(b) stated that there was a fourth police officer – identified by the investigation as Sgt. Dominick Maranzano – who remained standing outside the door to his apartment; in his statement to CCRB, § 87(2)(b) mentioned only the officers who entered his apartment.

As soon as he entered the apartment, Det. Friendly punched § 87(2)(b) either two or three times in the chest, directly above his heart. (In his statements to 911 and IAB, § 87(2)(b) said Det. Friendly punched him two times; in his statement to CCRB, § 87(2)(b) stated that it was either two or three.) § 87(2)(b) believed that Det. Friendly was attempting to knock him over in order to overcome any potential resistance. However, § 87(2)(b) remained on his feet. Still not certain that the individuals were police officers, § 87(2)(b) yelled out loudly and prepared to strike Det. Friendly back. However, Det. Friendly grabbed § 87(2)(b)'s left wrist, Det. Francis and PO Lavelle revealed their firearms, and Det. Francis showed § 87(2)(b) his shield.

Det. Friendly then repeatedly asked § 87(2)(b) “Where’s the drugs?” and “Where’s the money?” Det. Friendly also told § 87(2)(b) that this was a “drug house.” § 87(2)(b) explained that he had recently moved into the apartment and had no drugs or other contraband. Det. Friendly insisted, telling § 87(2)(b) that the last time he was there, there were crack vials all over the floor, and the furniture was the same. § 87(2)(b) had brought new furniture when he moved into the apartment.) Meanwhile, PO Francis walked past § 87(2)(b) opened the door to a closet and looked inside, then went into § 87(2)(b)'s bedroom. § 87(2)(b) could not see what Det. Francis did inside the bedroom, but stated that he remained there for two to three minutes.

§ 87(2)(b) got a copy of his lease agreement and showed it to the officers in order to prove that he had moved into the apartment about a month before. He then demanded the badge numbers of all the officers present, saying, “I want to see your badges and I want to take down your numbers.” Det. Friendly very briefly showed § 87(2)(b) his shield, then wrote down what he said were his name and badge number on a piece of paper. Det. Friendly wrote, “Smith, J. 3100.” § 87(2)(b) was unable to produce this paper.) Det. Francis and PO Lavelle ignored § 87(2)(b)'s requests. § 87(2)(b) stated that PO Lavelle remained silent throughout her time in the apartment, and appeared uncomfortable with the way the incident was proceeding. § 87(2)(b) then began asking Det. Francis if he had a search warrant, but Det. Friendly interrupted,

saying, “Shut up, or I’m going to arrest you.” § 87(2)(b) then demanded that the officers leave his apartment, and threatened to call other police to the scene. All three officers left the apartment. A few seconds later, Det. Friendly returned to the apartment door and asked § 87(2)(b) for his name and date of birth. § 87(2)(b) provided this information, and Det. Friendly left.

§ 87(2)(b) called 911 immediately to report the incident, and two uniformed officers (one of them a sergeant) arrived and spoke to him. When § 87(2)(b) showed them the paper on which Det. Friendly had written what § 87(2)(b) believed to be his name and shield number, the officers told § 87(2)(b) that the information was probably fake. They then provided § 87(2)(b) with the number for the IAB Command Center and instructed him to file a complaint by telephone.

During his photo array viewing at the CCRB, § 87(2)(b) identified Det. Friendly as the main subject officer. He did not recognize Det. Phillip Smith (also of Brooklyn North Narcotics, 75th Precinct module), Sgt. Maranzano, or PO Lavelle.

NYPD Statements:

Subject Officer: DETECTIVE DENNIS FRIENDLY

- *Black male, § 87(2)(b) old, 5’11”, 200 lbs., black hair, brown eyes.*
- *Arresting officer for Brooklyn North Narcotics 75th Precinct Module, plainclothes, unmarked vehicle with Sgt. Maranzano, 3:27 p.m. to 12:00 a.m.*

Memo Book

Det. Friendly had the following entry in his memo book concerning the incident: “1830 A/A Re: § 87(2)(b) Check for possible burg[lary]. Lights on @ location. Prepared 250 § 87(2)(b) § 87(2)(b) @ location deft showed apt lease 250 prepared.” [Encl. D 1-3.]

Document Statements

Det. Friendly prepared a handwritten UF 250 to document his interaction with § 87(2)(b) [Encl. D 4-5]. The UF 250 indicates the area’s “high incidence of reported offenses of type under investigation” as the sole reason for § 87(2)(b)’s stop. A computerized version of this UF 250 was not found on file.

CCRB Testimony

Det. Friendly was interviewed at the CCRB on April 27, 2010 [Encl. D 6-8]. He began by stating that § 87(2)(b) is the site of frequent narcotics-related arrests. Approximately six months prior to the incident date – January 26, 2010 – § 87(2)(b), § 87(2)(e), § 87(2)(f)

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On January 26, 2010, at approximately 6:30 p.m., Det. Friendly and the rest of his team drove by § 87(2)(b) and Det. Friendly noticed that the lights were on in § 87(2)(b) § 87(2)(e), § 87(2)(f). Det. Friendly entered the building before any other officers, and left the door propped open behind him. He then knocked on the door to § 87(2)(b) and a voice (belonging to § 87(2)(b)) asked who was there. Det. Friendly replied, § 87(2)(e), § 87(2)(b). After repeating this exchange once or twice, § 87(2)(b) opened the door. Det. Friendly had taken out his shield from under his sweatshirt, and was holding it towards § 87(2)(b). As soon as the door was opened, Det. Friendly stepped through the threshold and into § 87(2)(b)'s apartment. § 87(2)(b) appeared startled, and tried to close the door on Det. Friendly; however, since he had crossed the threshold, the door made contact with Det. Friendly's foot, which kept the door from closing. As § 87(2)(b) continued trying to push the door closed, Det. Friendly held out his shield and stated that he was a police officer. However, § 87(2)(b) either did not comprehend or did not believe him and continued trying to close the door. At this point, Det. Francis and PO Lavelle entered the building and appeared behind Det. Friendly. At that moment, § 87(2)(b) stopped pushing the door closed. Det. Friendly speculated that § 87(2)(b) was not convinced he was dealing with police officers until he saw Det. Francis and PO Lavelle. Det. Friendly then asked him if he could step further into the apartment, and § 87(2)(b) said, "Yeah." Det. Friendly, Det. Francis and PO Lavelle walked into the hallway of the apartment; Sgt. Maranzano, who had also entered the building, stayed outside the apartment door.

From inside the apartment hallway, Det. Friendly could see that the furniture was different and the apartment was generally tidier than it used to be. § 87(2)(b) explained that he had moved in recently. Det. Friendly, in turn, explained to § 87(2)(b) that the previous tenant had been the frequent victim of apartment takeovers on the part of drug dealers, and that they (the officers) were simply checking in on the apartment. § 87(2)(b) acknowledged that, since moving into the apartment, strangers had been picking at his side window and his door. Det. Friendly asked § 87(2)(b) if he had documents proving that he lived there; § 87(2)(b) provided him with a copy of his lease agreement. He then asked all the officers present inside the apartment for their names and shield numbers. Det. Friendly, Det. Francis and PO Lavelle verbally provided § 87(2)(b) with this information. Det. Friendly did not write down his name or shield number, but believed that § 87(2)(b) might have done so. The officers subsequently left the apartment with no further incident.

Det. Friendly stated that he never punched, struck, or in any way made physical contact with § 87(2)(b) that neither he nor any other officers entered areas in § 87(2)(b)'s apartment other than the front hallway, nor did they otherwise search the apartment; that he did not provide § 87(2)(b) with a name and/or shield number other than his own, including "Smith" or "3100"; and that he never threatened § 87(2)(b) with arrest.

Subject Officer: DET. MATTHEW FRANCIS

- *White male, § 87(2)(b) old, 5'9", 215 lbs., brown hair, blue eyes*
- *Assigned to the chase car for Brooklyn North Narcotics 75th Precinct Module, with PO Lavelle, plainclothes, unmarked vehicle, 2:27 p.m. to 11:00 p.m.*

Memo Book

Det. Francis had the following entry in his memo book concerning the incident: "1830 A/A re: § 87(2)(b) UF250 prepared by Det. Friendly." [Encl. D 9-11.]

CCRB Testimony

Det. Francis was interviewed at the CCRB on June 10, 2010 [Encl. D 12-13]. Det. Francis corroborated Det. Friendly's testimony in stating that § 87(2)(b) of § 87(2)(b)

was the frequent target of takeovers by drug dealers. § 87(2)(e), § 87(2)(f)

Det. Francis's testimony different from Det. Friendly's in the following respects:

According to Det. Francis, the officers arrived at the building to check on general narcotics activity, and possibly to conduct a vertical patrol. Det. Friendly entered first, in order to allow the officers access into the building; by the time Det. Francis and PO Lavelle entered the building, Det. Friendly was already approximately ten feet into § 87(2)(b)'s apartment. Det. Francis and PO Lavelle followed him inside. § 87(2)(b) appeared upset at their presence in his apartment, repeatedly and loudly asking them why they were there, though never explicitly requesting that they leave. Det. Francis stated that he interacted directly with § 87(2)(b) explaining the apartment's narcotics history and their presence at the location. Det. Francis did not specifically recall either § 87(2)(b) or any officers writing down names and shield numbers, but stated that he verbally provided § 87(2)(b) with his own information.

Det. Francis stated that neither he nor any other officers entered any rooms in § 87(2)(b)'s apartment other than the front hallway, nor did they open any doors or other enclosed spaces; that no officers made physical contact with § 87(2)(b) and specifically that Det. Friendly did not punch him; that no officers threatened § 87(2)(b) with arrest; and that no officers provided § 87(2)(b) with false or inaccurate names or shield numbers.

Subject Officer: PO JENNIFER LAVELLE

- *White female, § 87(2)(b), 5'8", 140 lbs., brown hair, brown eyes.*
- *Assigned to the chase car for Brooklyn North Narcotics 75th Precinct Module, with Det. Francis, plainclothes, unmarked vehicle, 2:33 p.m. until 11:00 p.m.*

Memo Book

PO Lavelle had the following entry in her memo book concerning the incident: "1830 – A/A – 1004 Hegeman UF250 prepared – Friendly." [Encl. D 14-16.]

CCRB Testimony

PO Lavelle was interviewed at the CCRB on April 9, 2010 [Encl. D 17-18]. § 87(2)(b), § 87(2)(e), § 87(2)(f)

PO Lavelle did state that an elderly male used to live in the apartment, which was the frequent target of takeovers by drug dealers, and that she and her field team regularly stopped by the apartment to check for narcotics activity. PO Lavelle's testimony regarding the events of January 26, 2010 differed from Det. Friendly's and Det. Francis's in the following respects:

PO Lavelle stated that she and Det. Francis were present for Det. Friendly's initial entry into the apartment. Det. Friendly knocked on the apartment door, and § 87(2)(b) answered; there was no conversation between Det. Friendly and § 87(2)(b) through the closed door. When § 87(2)(b) opened the door, Det. Friendly identified himself as a police officer and asked § 87(2)(b) who he was. § 87(2)(b) identified himself as the apartment's new tenant. Det. Friendly asked if he had proof of residence, and § 87(2)(b) stated that he had a lease inside. Det. Friendly then asked if he could step inside to look at the lease, and § 87(2)(b) said that he could. At this point Det. Friendly, Det. Francis and PO Lavelle entered the apartment. (Sgt. Maranzano was on the scene, but did not enter the apartment.) § 87(2)(b) did not make any efforts to prevent the officers from entering, such as closing the door or protesting the officers'

presence. While inside the apartment, § 87(2)(b) retrieved his lease and showed it to the officers. After explaining that drugs used to be sold from the apartment, Det. Friendly asked § 87(2)(b) if anyone had been by, or if he knew anything about the previous tenant; § 87(2)(b) answered no to both questions. PO Lavelle described the interaction as brief and civil, and further stated that § 87(2)(b) never asked any of the officers for their names or shield numbers.

Like Det. Francis and Det. Friendly, PO Lavelle stated that the officers remained standing in the apartment's hallway, immediately in front of the door, and that they never entered any other rooms or opened any enclosed spaces; that Det. Friendly never punched § 87(2)(b) and no officers made any physical contact with him; and that Det. Friendly never threatened to arrest § 87(2)(b).

Witness Officer: SGT. DOMINICK MARANZANO

- *White male, § 87(2)(b) old, 5'7", 230 lbs., brown hair, blue eyes.*
- *Supervisor for Brooklyn North Narcotics 75th Precinct module, with Det. Friendly, plainclothes, unmarked vehicle, 2:25 p.m. until 11:00 p.m.*

Memo Book

Sgt. Maranzano had the following entry in his memo book concerning the incident: "1830: A/A re: 1004 Hegeman Ave UF250 prepared by Det. Friendly." [Encl. D 19-21.]

CCRB Testimony

Sgt. Maranzano was interviewed at the CCRB on June 15, 2010 [Encl. D 22-23]. Sgt. Maranzano stated that, on January 26, 2010, he and his field team were visiting chronic narcotics locations in order to make arrests. Sgt. Maranzano was new to the 75th Precinct module at the time, and was not familiar with most of the locations. Det. Friendly informed him that § 87(2)(b) apt. A4 was a vacant apartment that was frequently used by crack addicts for using and dealing drugs. § 87(2)(e), § 87(2)(f)

§ 87(2)(b)

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Like Det. Friendly and Det. Francis, Sgt. Maranzano stated that Det. Friendly entered the building first, leaving the door open for the others. Det. Francis and PO Lavelle went in behind him, and Sgt. Maranzano, who had been talking on his cell phone, entered the building after them. By the time he entered, Det. Friendly and Det. Francis were about 25 feet into § 87(2)(b)'s apartment. (Sgt. Maranzano could not recall whether PO Lavelle entered the apartment or stayed out in the hallway.) § 87(2)(b) was yelling that he lived in the apartment and asking why the officers were there. Soon thereafter, Sgt. Maranzano heard § 87(2)(b) asking for names and shield numbers; at this point, Sgt. Maranzano opted not to enter the apartment and instead remained immediately outside the door in the hallway. From this position, he was able to see the detectives, who did not make physical contact with § 87(2)(b) and did not enter any other rooms in the apartment. Sgt. Maranzano heard Det. Friendly and Det. Francis verbally provide § 87(2)(b) with their own names and shield numbers. Sgt. Maranzano did not hear Det. Friendly threatening to arrest § 87(2)(b) at any point.

Witness Officer: SGT. CHRIS HUETER

- *White male, § 87(2)(b) old, 5'11", 210 lbs., brown hair, blue eyes.*

- 75th Precinct patrol supervisor, from 2:50 p.m. until 11:47 p.m., in uniform, in a marked RMP operated by PO Ryan White.

Memo Book

Sgt. Hueter did not make any official memo book entries regarding this incident. However, he provided a copy of his memo book fly sheet [Encl. D 31], on which he wrote the information he obtained from § 87(2)(b). This includes § 87(2)(b)'s name, date of birth, and phone number, physical descriptions of the officers provided by § 87(2)(b) the name "PO Smith, J," and the number "3100."

CCRB Testimony

Sgt. Hueter was interviewed at the CCRB on July 23, 2010 [Encl. D 32-33]. He confirmed that he responded to § 87(2)(b)'s apartment at § 87(2)(b) in regards to § 87(2)(b)'s request to speak to a supervisor regarding his interactions with police officers. Sgt. Hueter could not clearly remember the specific allegations that § 87(2)(b) was making, but recalled that they involved a stop and physical force. Sgt. Hueter recalled § 87(2)(b) telling him that he had not obtained names and shield numbers from the officers. Sgt. Hueter did not recall § 87(2)(b) presenting him with a piece of paper on which the officers had written their information, nor did he recall telling § 87(2)(b) that any of this information was false. Sgt. Hueter had no specific recollections attached to writing the name "PO Smith, J" and the number "3100" on the fly sheet of his memo book, but speculated that "3100" was a badge number that the officers had given to § 87(2)(b).

Other Officers Interviewed

Detective Phillip Smith of the Brooklyn North Narcotics 75th Precinct module was interviewed on March 2, 2010 [Encl. D 27-28]. However, it was determined that Det. Smith was assigned to the team's prisoner van on January 26, 2010 and had no involvement in the incident. PO Ryan White, Sgt. Hueter's operator, was interviewed on July 27, 2010; however, PO White had no substantive recollection of the incident.

NYPD Documents

The SPRINT corresponding to § 87(2)(b)'s 911 call [Encl. E 1-4] includes some transcriptions of statements made by § 87(2)(b) including a claim that an officer "Beat him up n [sic] hit him in the head." However, as is made clear by the 911 recording, the claim of being hit in the head is an error in the SPRINT; § 87(2)(b) never claimed that an officer hit him in the head, but rather claimed that an officer punched him twice in the chest.

NYPD records indicate numerous arrests, the majority of them narcotics-related, occurring at § 87(2)(b) between 2002 and 2010 [Encl. E 14-16]. These records do not specify apartment numbers. Two of these arrests, both occurring in 2009, were of an individual named § 87(2)(b). One of these arrests, for criminal possession of a controlled substance in the 7th degree, was executed by Det. Friendly on June 2, 2009 [Encl. E 18].

Other Evidence

On February 19, 2010, Investigator Black contacted the superintendent of § 87(2)(b) [Encl. H 1], who stated that, prior to § 87(2)(b)'s moving into § 87(2)(b) the apartment had been occupied by a man named "§ 87(2)(b)". According to the superintendent, "§ 87(2)(b)" moved out of the apartment around November of 2009, and frequently had many guests coming in and out of the apartment.

Lexis Nexis records list § 87(2)(b) as the resident of § 87(2)(b) in § 87(2)(b).

§ 87(2)(b) starting in November of 2008 [Encl. F 1].

Spring 3100 is the name of a newsletter published by the Patrolmen's Benevolent Association and distributed within the NYPD. CCRB records indicate numerous complaints in which police officers, rather than providing their own shield numbers, provided civilians with the shield number "3100." These include CCRB cases 200208219 and 200511416, in both of which the relevant allegations were substantiated.

Status of Civil Proceedings

§ 87(2)(b) has not filed a Notice of Claim with the City of New York as of June 21, 2010.

§ 87(2)(b)

[REDACTED]

Civilian CCRB History

This is the first CCRB complaint filed by § 87(2)(b) [Encl. B 5].

Subject Officer CCRB History

Det. Friendly has been a member of service for 7 years and there are no substantiated CCRB allegations against him [Encl. B 1-2].

Det. Francis has been a member of service for 10 years and there are no substantiated CCRB allegations against him [Encl. B 3].

PO Lavelle has been a member of service for 6 years and there are no substantiated CCRB allegations against her [Encl. B 4].

Conclusion

Identification of Subject Officers and Pleading of Allegations

§ 87(2)(b) identified Det. Friendly from a photo array, and Det. Friendly acknowledged his role in the incident. Therefore, all the relevant allegations are pleaded against him. Moreover, per Det. Friendly's own testimony, he spearheaded the officers' actions during the course of the incident, and was responsible for the decision to enter § 87(2)(b)'s apartment. Because any further searches were contingent on this initial breach, the entry/search allegation is pleaded against Det. Friendly.

All officers acknowledged that PO Lavelle and Det. Francis entered the apartment with Det. Friendly. Moreover, § 87(2)(b) provided descriptions that matched these officers. Therefore, a refusal to provide name and shield number allegation is pleaded against each of Det. Francis and PO Lavelle.

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: Det. Dennis Friendly entered and searched § 87(2)(b)

drug offenders. This expectation of encountering a known criminal explains Det. Friendly's aggressive behavior as described by § 87(2)(b) immediately pushing into the apartment, attempting to immobilize or intimidate its sole occupant with physical force, and vigorously questioning him about alleged drug activity.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegations C, D & E – Abuse of Authority: Detective Dennis Friendly, Detective Matthew Francis and Officer Jennifer Lavelle refused to provide their names and shield numbers to § 87(2)(b)

§ 87(2)(b) alleged that Det Friendly responded to his requests for a name and shield number by writing “Smith, J.” and “3100” on a piece of paper, and that PO Lavelle and Det. Francis ignored his requests for the same information. The recordings of § 87(2)(b)'s calls to 911 and IAB indicate that § 87(2)(b) initially made this report immediately after the conclusion of the incident, evidently still believing that the name and number provided to him by Det. Friendly were accurate. The fact that “PO Smith, J.” and “3100” appear in writing on the fly sheet of Sgt. Hueter's memo book further confirms § 87(2)(b)'s contemporaneous report. Moreover, the fact that the number “3100” corresponds to the title of a PBA newsletter – i.e., a

piece of information commonly known by members of the service but reliably unfamiliar to civilians – § 87(2)(b), § 87(2)(g)

[REDACTED]

Allegation F – Abuse of Authority: Dennis Friendly threatened to arrest § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b), § 87(2)(g)

[REDACTED] s
claim that Det. Friendly threatened to arrest him (by stating something along the lines of, “Shut up, or I’m going to arrest you”) in response to his requests for a search warrant is fully consistent with Det. Friendly’s behavior throughout the rest of the incident. § 87(2)(b), § 87(2)(g)

[REDACTED]

§ 87(2)(b), § 87(2)(g), § 87(4-b)

[REDACTED]

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date